

25STCV06679 25STCV06679

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-08-12

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Case Number: 25STCV06679 Hearing Date: August 12, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:11 PM on August 11, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on August 11, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff

tenants alleges that Defendant landlords failed to remediate uninhabitable conditions at the property leased -by Plaintiffs.

Defendant 121 The King Edward, LLC moves to strike

portions of the First Amended Complaint.

TENTATIVE RULING

Defendant 121 The King Edward, LLC's motion to strike portions of the First Amended Complaint is DENIED as untimely.

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e) [motion for judgment on the pleadings]." (Code Civ. Proc., § 435(b)(1).) "A person against whom a complaint . . . has been filed may, within 30 days after service of the complaint . . . , demur to the complaint" (Civ. Proc. § 430.40(a).) "A party objecting to a complaint or cross-complaint may demur and answer at the same time." (Civ. Proc. Code, § 430.30(c).)

The First Amended Complaint was filed and served by email upon Defendant's counsel on September 12, 2025. A copy of the First Amended Complaint was against served by personal service upon Defendant 121 The King Edward, LLC on January 13, 2026. Defendant was required to respond to the First Amended Complaint by February 12, 2026. The motion to strike was not filed and served until March 20, 2026.